

DirectStay Owner / Platform Agreement — Owner Review Draft

Draft only for Jaimal/owner/counsel review. Not legal advice. Do not send, present as final, or enable signature flow until explicitly approved by Jaimal and, ideally, qualified counsel.

Agreement Summary / Business Terms

The final signature workflow should generate or attach a property-specific summary like this:

Field	Agreement Record Value
DirectStay Entity	[DirectStay legal entity / operator]
Owner / Operating Entity	[Owner legal name/entity]
Property	[Property name and address]
Agreement Effective Date	[Date]
Initial Term	[Month-to-month / fixed term / other]
Launch Type	[Preview only / inquiry-only / booking-enabled / payment-enabled]
Setup Fee	[Amount / waived / not applicable]
Monthly Platform Fee	[Amount / not applicable]
Commission / Success Fee	[Percent and basis]
Payment Processing	[Owner account / DirectStay-supported / not enabled]
Tax Responsibility	[Owner by default unless addendum says otherwise]
Guest Agreement Required	[Yes/no/version]
Support Contacts	[Owner/local manager/DirectStay contact roles]
Agreement Version	[Version/date/hash]

1. Purpose and Parties

This DirectStay Owner / Platform Agreement (the “Agreement”) is between:

- **DirectStay / Operator:** DirectStay or the DirectStay operating entity identified in the final signature record (“DirectStay”); and
- **Owner:** the property owner, authorized representative, or operating entity identified in the final signature record (“Owner”).

This Agreement governs DirectStay’s setup, website, marketing, direct-booking support, operational tooling, and related services for the vacation rental property or properties identified in the final property record, proposal, or statement of work (each, a “Property”).

2. Relationship of the Parties

DirectStay provides technology, website, marketing, content, inquiry-management, and optional booking-support services. DirectStay is not purchasing, leasing, or taking ownership of the Property.

Unless a signed addendum expressly says otherwise:

- Owner remains responsible for property ownership, legal compliance, guest hospitality, safety, taxes, permits, insurance, maintenance, cleaning, supplies, and on-site operations.
- DirectStay is an independent service provider, not Owner's employee, partner, joint venturer, broker, real-estate agent, property manager, legal counsel, tax advisor, insurer, or financial advisor.
- DirectStay does not have authority to bind Owner to prices, refunds, guest exceptions, reservations, legal terms, or payment obligations except through Owner-approved workflows or written authorization.
- Owner may continue using Airbnb, VRBO, property managers, local concierges, or other channels unless the property-specific statement of work says otherwise.

3. Services DirectStay May Provide

DirectStay may provide some or all of the following services, as agreed in the proposal, onboarding record, statement of work, or later written addenda:

3.1 Property Website and Direct-Stay Presence

- Design, build, host, maintain, and improve a guest-facing property website or DirectStay-hosted property page.
- Create or refine property positioning, page copy, image selection, local guide content, inquiry flows, and conversion-focused updates.
- Support DirectStay-hosted URLs, property subfolders, and/or custom domain setup.
- Maintain reasonable technical infrastructure for the enabled site features.

3.2 Lead, Inquiry, and Reservation Support

- Capture and organize guest inquiries.
- Prepare response drafts, quote drafts, reservation records, follow-up suggestions, and owner/admin summaries.
- Support contract, payment, availability, and status tracking where enabled.
- Maintain internal timelines, audit logs, lead records, and owner/admin views.

3.3 Operational Support

- Maintain owner/admin records, launch checklists, property content, booking terms, guest rules, and internal notes.
- Help Owner refine onboarding material, photos, local recommendations, house rules, FAQs, and guest-facing details.
- Support first-party review intake, guest feedback, and owner-approved publication workflows where enabled.

3.4 Marketing and Performance Support

- Improve property presentation, local search content, direct-booking positioning, conversion paths, and inquiry handling.
- Recommend experiments or updates based on site, inquiry, and reservation performance.
- Provide reporting or summaries where available.

Any service not expressly included in the approved proposal, property record, or statement of work is optional and may require separate written approval.

4. Preview Builds and Pre-Launch Work

DirectStay may create a preview website or draft materials before launch. Preview Builds are non-final sales/onboarding artifacts unless and until DirectStay and Owner approve launch readiness.

Preview Builds may include assumptions based on public sources, Owner-provided material, or DirectStay's best-effort drafting. Owner must review and correct inaccurate, incomplete, outdated, misleading, or unauthorized details before the site is treated as production-ready.

No preview should be treated as a live booking engine, payment system, legal representation, confirmed rate sheet, or final property description unless explicitly approved for launch.

5. Owner Responsibilities

Owner agrees to:

- Provide accurate property details, photos/media rights, rates or pricing guidance, availability, house rules, cancellation terms, taxes/fees guidance, permit/licensing details, insurance status, and guest policies.
- Promptly review and correct draft website copy, booking terms, guest rules, rates, fees, amenities, safety statements, and operational details.
- Maintain the Property in safe, legal, clean, rentable condition.
- Carry appropriate insurance and comply with applicable laws, permits, HOA/community rules, tax obligations, safety requirements, and accessibility/consumer obligations where applicable.
- Honor confirmed reservations and guest commitments made through approved DirectStay workflows.
- Provide and maintain accurate local support contacts for check-in, emergencies, cleaning, maintenance, damages, supplies, and guest issues.
- Respond reasonably to DirectStay requests needed for launch, guest support, content accuracy, or issue resolution.
- Not provide misleading, infringing, unsafe, unlawful, discriminatory, or unauthorized content.
- Respect third-party platform rules for OTA-origin guests and listings, including Airbnb/VRBO rules, where applicable.

6. Owner Representations

Owner represents that:

- Owner owns or is authorized to represent the Property for short-term rental purposes.
- Owner has authority to enter this Agreement and approve the Property's DirectStay presence.
- Owner has the rights needed to provide photos, videos, logos, descriptions, reviews, guest materials, and other content to DirectStay.
- Owner's provided information is accurate to the best of Owner's knowledge and will be updated when it changes.
- The Property may be legally offered for the intended rental use, subject to Owner's ongoing compliance duties.

7. Commercial Terms, Fees, and Payment Processing

The final proposal or statement of work should specify the commercial structure, which may include one or more of:

- setup fee;
- monthly platform/service fee;
- DirectStay commission or success fee;
- payment-processing or pass-through fees;
- custom launch, maintenance, content, automation, or support fees.

Unless the final agreement states otherwise:

- Payment-processing fees, chargeback fees, tax remittance costs, refunds, domain/hosting costs, software fees, and third-party service costs may be passed through to Owner or deducted from amounts payable to Owner if disclosed in the approved commercial terms.
- DirectStay may invoice Owner, deduct approved fees from collected booking funds, or use another Owner-approved payment flow.

- Owner remains responsible for lodging taxes, occupancy taxes, income taxes, licensing, and regulatory reporting unless DirectStay expressly agrees in writing to handle a specific item.
- DirectStay may suspend non-essential services or pause launch for nonpayment, payment disputes, fraud risk, or missing payment setup after reasonable notice when practicable.

No pricing or fee structure should be presented externally as final until Jaimal has approved the proposal terms.

8. Booking Funds, Refunds, Chargebacks, and Taxes

If DirectStay later supports guest payment collection, the operational flow must identify:

- who is merchant of record or payment-account owner;
- when funds are collected;
- when Owner receives payouts;
- how DirectStay fees are deducted;
- how refunds, cancellations, disputes, and chargebacks are handled;
- who calculates, collects, reports, and remits applicable taxes;
- what payment-provider terms apply.

Until those details are approved in a launch-ready payment addendum or statement of work, this Agreement does not authorize DirectStay to take live guest payments for Owner.

Owner remains responsible for honoring approved refunds, cancellations, chargebacks, tax obligations, and guest commitments unless a written payment addendum states otherwise.

9. Guest Communications and Authority

Owner-facing and guest-facing communication authority must be explicit.

Unless an approved workflow says otherwise:

- DirectStay may draft owner or guest communications for review.
- DirectStay may summarize inquiries, suggest replies, prepare quotes, and recommend next actions.
- DirectStay may send communications only when the approved operating flow authorizes sending or when Owner/Jaimal has explicitly approved the specific communication.
- Owner remains responsible for final property promises, rates, guest eligibility decisions, booking acceptance, cancellations, refunds, exceptions, and issue-resolution positions.

10. AI-Assisted Operations

DirectStay may use AI-assisted tools, including Bishop/operator workflows, to support drafting, summarization, triage, content creation, lead review, QA, reporting, and operational recommendations.

AI-assisted outputs are operational support, not legal, tax, insurance, or financial advice. Owner or DirectStay operator review is required before external communications, launch-critical claims, guest contracts, payment workflows, or legally significant actions are treated as approved.

11. Content Rights, Reviews, and Brand Use

Owner grants DirectStay a non-exclusive, worldwide, royalty-free license during the term of this Agreement to use Owner-approved property names, photos, videos, descriptions, logos, amenities, local recommendations, house rules, and related content as needed to provide the services.

Owner represents that Owner has the rights necessary to provide such content and that DirectStay's authorized use will not violate third-party rights, privacy rights, publicity rights, platform rules, or intellectual-property rights.

DirectStay may create new copy, layouts, strategy, templates, code, automations, workflows, and operational artifacts. Unless otherwise agreed:

- Owner may use final approved guest-facing property copy and imagery for the Property.
- DirectStay retains ownership of DirectStay platform code, templates, internal systems, workflows, automations, strategy materials, AI/operator tooling, and non-owner-specific know-how.
- DirectStay may reuse generalized know-how, patterns, non-confidential learnings, and platform improvements.

Reviews and testimonials should be permission-first. Owner must not provide copied OTA reviews, guest photos, or customer images for republication unless Owner has the rights and permissions necessary for DirectStay to use them.

12. Domains, Hosting, and Third-Party Services

The Property may use a DirectStay-hosted URL, an Owner-owned custom domain, or both.

Unless otherwise agreed:

- Owner remains owner of any Owner-owned domain.
- DirectStay-hosted URLs, code, deployment infrastructure, and platform accounts remain DirectStay-controlled.
- DirectStay may provide DNS/hosting setup guidance or manage configuration with Owner approval.
- Third-party providers may have separate terms, outages, fees, security limitations, and service restrictions.
- DirectStay may change infrastructure providers if needed to maintain or improve the service.

13. Launch Prerequisites

A Property should not be launched as a live direct-booking or payment-enabled site until DirectStay and Owner confirm the launch checklist, including as applicable:

- approved property copy, photos, amenities, rules, rates, fees, cancellation terms, taxes, and availability process;
- domain/URL and search-indexing settings;
- inquiry, booking, payment, and calendar/integration flow status;
- guest rental agreement and guest acceptance flow;
- insurance, permit, tax, and compliance responsibilities assigned to Owner unless otherwise agreed;
- local support contacts and emergency process;
- privacy/data handling requirements;
- Owner approval of final launch state.

DirectStay may refuse, delay, or pause launch if required details are missing, inaccurate, unsafe, unlawful, approval-blocked, or likely to create guest, payment, regulatory, or reputational risk.

14. Data, Privacy, and Confidentiality

Each party may receive confidential or sensitive information from the other, including owner contact details, guest inquiries, reservation details, pricing, operational notes, property records, payment details, and private business information.

Each party agrees to use such information only for the services, protect it with reasonable care, and avoid unauthorized disclosure except as needed for service providers, legal compliance, payment processing, guest support, security, dispute resolution, or approved operations.

DirectStay may store operational records in its admin systems, audit logs, support tools, hosting providers, payment providers, analytics systems, communications providers, and AI/operator tooling as needed to provide, secure, audit, and improve the service.

Owner remains responsible for using guest data lawfully and respecting privacy obligations, including any restrictions imposed by third-party platforms for OTA-origin guests.

15. Channel Conflict and OTA Compliance

DirectStay is intended to support direct bookings and owner-controlled guest relationships. However, Owner may also use Airbnb, VRBO, property managers, and other channels.

Owner remains responsible for understanding and complying with any third-party platform terms, including rules about off-platform communications, guest data, fees, reviews, cancellation handling, and payment collection. DirectStay should not be used to improperly divert existing OTA bookings, misuse OTA guest data, or violate third-party platform rules.

16. On-Site Operations and Property Management Boundary

Unless a written addendum says otherwise, DirectStay does not provide on-site property management.

Owner or Owner's local manager is responsible for:

- check-in/check-out logistics;
- guest arrival support;
- cleaning and turnovers;
- maintenance and repairs;
- emergency response;
- supplies and amenities;
- damage inspection and documentation;
- safety equipment and legal compliance;
- local staff, vendors, concierge, or management company performance.

DirectStay may help track, draft, or communicate about these items only within the approved operating flow.

17. Term and Termination

The Agreement begins when signed or otherwise accepted and continues until terminated under the approved terms.

Either party may terminate for convenience with the notice period specified in the final proposal or statement of work. Either party may terminate sooner for material breach if the breach is not cured within the stated cure period, or immediately where continued operation would create legal, safety, fraud, payment, data-security, guest-harm, or reputational risk.

Upon termination:

- Owner remains responsible for existing guest commitments unless otherwise agreed.
- DirectStay may remove or disable the DirectStay-hosted site, booking flows, integrations, admin access, and active services.
- Amounts earned or incurred before termination remain payable.
- The parties should coordinate transition of Owner-owned domains, final approved property content, and guest/reservation records where legally and operationally appropriate.
- Confidentiality, payment, ownership, data, indemnity, liability-limit, and dispute provisions should survive as appropriate.

18. Warranties and Disclaimers

DirectStay will use commercially reasonable efforts to provide the services in a professional manner.

DirectStay does not guarantee specific search rankings, inquiry volume, booking revenue, occupancy, guest behavior, conversion rate, platform uptime, third-party provider performance, legal compliance outcomes, or tax/insurance treatment.

Owner is responsible for reviewing final property representations and obtaining legal, tax, insurance, licensing, regulatory, and hospitality advice where needed.

19. Liability Limits

To the fullest extent permitted by law, neither party will be liable for indirect, incidental, special, consequential, punitive, exemplary, or lost-profit damages arising from this Agreement.

DirectStay's total liability should be capped in the final approved version, commonly by reference to fees paid to DirectStay during a defined lookback period, except where such limitation is prohibited by law or excluded by final counsel-approved language.

Counsel should confirm whether the cap should exclude confidentiality breaches, payment obligations, indemnity claims, gross negligence, willful misconduct, or other categories.

20. Indemnity

Owner should indemnify DirectStay for claims, losses, damages, costs, and expenses arising from:

- Property ownership, condition, safety, maintenance, or operations;
- Owner-provided content or inaccurate property information;
- Owner's violation of laws, permits, taxes, HOA/community rules, third-party platform rules, or guest commitments;
- guest injuries, property incidents, on-site disputes, damage claims, or hospitality failures except to the extent caused by DirectStay's gross negligence or willful misconduct;
- unauthorized or infringing photos, reviews, videos, logos, or other content provided by Owner.

DirectStay should indemnify Owner for third-party claims arising from DirectStay's gross negligence, willful misconduct, or unauthorized use of Owner content outside the scope of this Agreement, subject to final counsel-approved limits.

21. Dispute Resolution and Governing Law

The final version should specify governing law, venue, notice addresses, dispute-resolution procedure, and whether mediation, arbitration, jury waiver, class-action waiver, or attorney-fee language is appropriate.

Placeholder for review:

This Agreement will be governed by the law selected in the final signature record. Any dispute must be handled in the venue and under the process specified in the final approved version.

22. Notices

The final agreement should identify notice addresses and approved delivery methods for each party, including email addresses for routine operational notices and formal notice addresses for legal notices.

23. Changes to Services or Terms

DirectStay may improve, modify, suspend, or discontinue non-material service features as needed for security, reliability, provider changes, or product improvement.

Material changes to commercial terms, payment processing, owner obligations, or live guest-facing booking flows should require written approval or a new statement of work/addendum.

24. Electronic Acceptance and Signature

The final operational flow may allow acceptance by:

- e-signature provider;
- typed signature;
- authenticated Owner Portal approval;
- checkbox acknowledgment plus stored agreement version;
- email confirmation if approved by counsel/Jaimal.

The acceptance record should store signer identity, timestamp, agreement version, property/lead context, IP/session metadata where appropriate, and audit timeline events.

Owner/Counsel Review Checklist

Before using this agreement, confirm:

1. DirectStay legal entity and notice address.
2. Whether DirectStay is ever a property manager, agent, broker, or merchant of record, or only software/operations support.
3. Default commercial model: setup fee, monthly fee, commission/success fee, hybrid, and attribution rules.
4. Whether agreement is non-exclusive by default.
5. Payment flow, merchant of record, tax handling, payout schedule, refunds, and chargebacks.
6. Owner/local manager responsibilities for on-site operations.
7. DirectStay authority to send guest communications or approve reservations.
8. Launch-readiness checklist and contract-executed gate.
9. Content/review/photo rights and OTA-compliance language.
10. Privacy/data handling and AI-assisted operations language.
11. Liability cap amount/lookback period and exclusions.
12. Indemnity scope.
13. Governing law, venue, dispute process, attorney fees, arbitration/class waiver if desired.
14. Termination notice period and transition obligations.
15. Any jurisdiction-specific short-term-rental, consumer, tax, or property-management compliance requirements.

Proposal-to-Contract Checklist for PlatformLeads

A. Before Proposal

- [] Lead is plausible and not spam/junk.

- ☐ Lead Brief exists with owner/contact, property/location, fit assessment, missing info, and recommended next step.
- ☐ Draft first response or discovery notes are approved before any external send.
- ☐ Preview Build is either not needed yet or clearly marked preview-only/noindex/non-functional.

B. Proposal Draft

- ☐ Proposal Rationale captured: why now, suggested commercial structure, risks/unknowns.
- ☐ Proposed setup fee/monthly fee/commission/payment-processing treatment recorded.
- ☐ Owner responsibilities and launch prerequisites summarized in plain English.
- ☐ Jaimal approval captured before any proposal terms are sent externally.

C. Acceptance

- ☐ Clear owner acceptance captured ("yes, let's move forward" or equivalent).
- ☐ Acceptance triggers Onboarding Prep only; it does not auto-create production Owner/Property records.
- ☐ Internal timeline/audit note added.

D. Agreement Prep

- ☐ Owner/platform agreement generated from approved template/version.
- ☐ Property, owner identity, commercial terms, payment-processing assumptions, domain/hosting choice, support expectations, and launch prerequisites reviewed.
- ☐ Open legal/business questions flagged for Jaimal/counsel.
- ☐ Agreement is marked Draft/Needs review until approved.

E. Signature / Contract Executed Gate

- ☐ Jaimal/counsel approval captured for the final agreement version.
- ☐ Owner signature/acceptance captured through approved channel.
- ☐ Signed version, signer identity, timestamp, and audit evidence stored.
- ☐ PlatformLead shows contract executed before production launch or live payment/booking activation.

F. Launch Readiness

- ☐ Onboarding materials received/reviewed.
- ☐ Property copy/photos/amenities/rules/rates/fees/cancellation/taxes approved.
- ☐ Guest rental agreement and guest acceptance flow selected if bookings are enabled.
- ☐ Inquiry/payment/booking capabilities intentionally enabled or disabled.
- ☐ Owner support contacts and issue escalation path documented.
- ☐ Final launch approval recorded.

Admin Integration Notes

Future PlatformLead integration should store this agreement as a durable artifact with:

- artifact type: owner_platform_agreement;

- template/version identifier;
- status: draft, needs_review, approved_for_signature, sent_for_signature, executed, voided;
- linked PlatformLead and eventual Owner/Property IDs;
- proposed commercial terms snapshot;
- signature/acceptance evidence;
- audit events for generation, approval, send, signature, void/reissue, and launch-gate checks.